UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION

Ensuring the Timely and Orderly Interconnection of Large Loads	))))	Docket No. RM26-4-000

COMMENTS OF THE AMERICAN CLEAN POWER ASSOCIATION ON PROPOSED ADVANCE NOTICE OF PROPOSED RULEMAKING

The American Clean Power Association ("ACP")[1] appreciates the opportunity to provide comments on the U.S. Department of Energy's proposed Advance Notice of Proposed Rulemaking ("ANOPR") submitted to the Federal Energy Regulatory Commission ("Commission)[2] on October 23. Ensuring the timely, reliable, and cost-effective interconnection of large loads – along with the supply-side resources that will provide power to them – is an issue of utmost importance. ACP appreciates the Administration's leadership in initiating this important and timely dialogue on large-load interconnection, recognizing the urgency of aligning policy with rapidly evolving system needs.

The ANOPR, issued on October 27, 2025, proposes multiple principles to advance timely interconnections of large loads. Addressing these issues will require record development (including jurisdictional determinations) before the Commission

[1] The American Clean Power Association (ACP) is the leading voice of today's multi-tech clean energy industry, representing energy storage, wind, utility-scale solar, clean hydrogen, and transmission companies. ACP is committed to meeting America's energy and national security goals and building our economy with fast-growing, low-cost, and reliable domestic power. The views and opinions expressed in this filing do not necessarily reflect the official position of each individual member of ACP.

[2] Ensuring the Timely and Orderly Interconnection of Large Loads, RM26-4 (2025) (" Proposed Large Load ANOPR" or "Proposed ANOPR").

takes final action. ACP submits these comments to assist the Commission as it moves forward with a rulemaking on these issues, and will continue to work – along with its member companies – to support Commission actions that that meaningfully improve and accelerate the interconnection of large loads, alongside robust growth of new supply-side resources to meet growing demand.

I. COMMENTS

A. <u>The Commission Should Respect Principles of Cooperative Federalism, and Avoid Disruption of Existing and Effective Load Interconnection Processes</u>

In considering whether to act upon load interconnection processes, the Commission should keep core federalism principles at the forefront of its decision-making. Load interconnection has historically been a state-jurisdictional issue, and any Federal action should be measured and carefully considered. As noted in the ANOPR, the Commission would need to consider several threshold issues about whether, and if so where, to assert federal jurisdiction over large load interconnection. Principle 1 (seeking to limit jurisdiction to transmission-level interconnection only, utilizing the Commission's longstanding seven-factor test)[3] and Principle 2 (proposing a 20MW threshold, as the Commission has adopted for Large Generator Interconnection Procedures and Agreements)[4] represent potential methods of delineating jurisdiction, although each poses some concerns (as discussed below). ACP recommends that the Commission consider a measured approach that will respect state authority, limit unnecessary jurisdictional fights over smaller load interconnection, and allow for

[3] ANOPR at P18.

[4] ANOPR at P19.

appropriate variation at state and regional levels, while ensuring timely and reliable interconnection of large loads and supply resources.

One pathway that the Commission should consider would be a state-driven approach, which would seek to minimize disruption of the multiple large load projects under development and seeking to interconnect today. Under such an approach, the Commission would set clear requirements for consistent, timely, and transparent load and hybrid interconnection procedures. Federal action might be triggered if and when transmission providers or state processes could not meet these requirements or timetables. In addition, the Commission should consider establishing a formal process for derogations or exceptions from any standards or requirements it adopts. This would allow flexibility in exceptional cases – particularly where strict compliance might jeopardize local reliability or impose disproportionate costs – while maintaining overall consistency and transparency. This could help to balance the ANOPR's stated goal of improved certainty while avoiding disruption of the multiple large load interconnection requests underway today.

Further, the proposed 20 MW load threshold (ANOPR Principle 2) may be unrealistically low for the types of large loads that drive transmission needs, and could inadvertently increase uncertainty by sweeping an unnecessarily high number of load interconnection requests into a new process Federal jurisdiction. Projects such as large data centers, electrified manufacturing plants, and large-scale electrified transportation hubs often require hundreds of megawatts. By contrast, a 20MW standalone threshold would capture many mid-sized projects that may pose little system risk, and in many cases may have a predictable pathway to interconnection under current rules. Any jurisdictional changes could jeopardize interconnection requests that are in process, and inadvertently increase interconnection delays. Additionally, ACP notes that a challenge can occur when multiple 20-100 MW mid-sized projects aggregate to a single point of grid connection, creating a scenario that resembles a large load addition. To address this challenge while respecting the differentiation between large loads (100 MW+) and mid-sized loads (20-100 MW), ACP recommends that the Commission utilize the record developed in this proceeding to establish a load interconnection threshold significantly higher than 20MW, while also taking note of multiple load interconnections at the same grid connection point that could be individually lower but collectively higher than the threshold level. Additionally, ACP notes that in many cases, larger loads may already be planning to connect to the transmission system – which may also help to avert potential jurisdictional clashes.

Any final action would need to be legally defensible and practically implementable approach. If a final action adds uncertainty to large load interconnection (such as an unclear transition period), the net result could be an interconnection process that is more difficult to manage. Further, several regions are already moving forward with their own, stakeholder-led approaches to large load interconnection, including pairing load and generation.[5] The Commission should ensure that any action in this proceeding supports regional flexibility, and does not deter or supplant proactive regional efforts – as broad stakeholder support can often help to lead to a more durable solution. Finally, ACP encourages the Commission to take a practical approach to implementing any final rule, including a clear transition period, to support efficient and reliable interconnections of large loads.

[5] *See, e.g.* Southwest Power Pool, *Submission of Tariff Revisions to Add the High Impact Large Load Processes and High Impact Large Load Generation Assessment*, Docket No. ER26-247 at 5, (2025)(proposing "the [High Impact Large Load Generation Assessment] process to facilitate the prompt interconnection of generating resources that are specifically identified for and limited to serving a [High Impact Large Load, at the request of the interconnection customer."); PJM Interconnection, Critical Issue Fast Path – Large Load Additions (2025) https://www.pjm.com/committees-and-groups/cifp-lla.

B. Any Action on Large Load Interconnection Should be Technology-Neutral and Respect Customer Choice

ACP appreciates the ANOPR's focus on ensuring that large loads and generating facilities can be evaluated jointly, and under predictable and fair rules. The ANOPR puts forward several principles regarding how large loads should be studied. Principle 3 recommends studying load together with affiliated generating facilities, to the extent practical;[6] Principle 4 urges adoption of standardized deposits, readiness requirements, and withdrawal penalties;[7] Principle 5 recommends that hybrid facilities be studied based upon the injection and/or withdrawal rights requested.[8] Each of these principles raise key questions that need to be resolved to advance load-generation hybrids quickly. Additionally, there may be relevant lessons from FERC's development of *pro forma* generator interconnection queue procedures and evolution of these processes across more than 40 transmission providers. In general, ACP supports regions having a clear method in place to study load-generation pairings in a coordinated fashion, with standard process improvements and readiness requirements, deposits, and withdrawal penalties that take into account best practices from the generator interconnection queue.

ACP also urges the Commission to ensure that any implementation of these principles is both technology- and fuel-neutral, and allows load customers to bring their own supply resources of choice, consistent with applicable laws and requirements. The load interconnection reforms under consideration in this proceeding mesh well with long-standing, legally durable Federal Power Act principles of preventing undue discrimination and preference. In developing large load interconnection rules, the

---

[6] ANOPR at P20.

[7] ANOPR at P21.

[8] ANOPR at P22.

Commission should ensure that there is no undue discrimination among supply resources that accompany interconnection requests for hybrid loads. Large load interconnection customers will have a range of circumstances – including their willingness to adjust to curtailment, their desired timeline, and the particular circumstances on the grid adjacent to the point of interconnection; each of these circumstances may cause load interconnection customers to prefer different types of supply resources. The Commission should ensure that any action is sufficiently broad to accommodate all types of load, generation, and storage that seek to interconnect in tandem, and should ensure that hybrid loads are utilizing appropriate protection schemes to support grid reliability. Relatedly, loads should be expressly allowed to bring their own supply resources with them, including energy storage.

II. CONCLUSION

The ANOPR raises multiple timely and critical issues for the Commission to consider, as it strives to reliably, predictably, and affordably assure that large loads can interconnect to the grid, along with the supply resources that will provide power to them. ACP and its member companies look forward to assisting the Commission in arriving at durable and effective solutions that will meet these shared goals.

Respectfully submitted,

Gabe Tabak, Assistant General Counsel
Carrie Zalewski, Vice President, Markets and Transmission
American Clean Power Association
1299 Pennsylvania Ave. NW, 13th Fl.
Washington, D.C. 20004
(202) 383-2500
gtabak@cleanpower.org
czalewski@cleanpower.org

November 21, 2025